



CHAPTER xxiv.

An Act for the abandonment of the railways and works authorised by the Hastings Harbour District Railway Acts 1897 and 1903. A.D. 1905.
[30th June 1905.]

WHEREAS by the Hastings Harbour District Railway Act 1897 (in this Act called "the Act of 1897") the Hastings Harbour District Railway Company (in this Act called "the Company") was incorporated and authorised to make and maintain certain railways parade or roadway and seawall in the county of Sussex :

And whereas by the Hastings Harbour District Railway (Extension of Time) Act 1902 the powers of the Act of 1897 for the compulsory purchase of lands for the purposes of that Act were revived and the period limited for their exercise and the period limited for the completion of the railway were extended :

And whereas by the Hastings Harbour District Railway Act 1903 (in this Act called "the Act of 1903") the Company was authorised to make and maintain certain deviation or substituted railways and new railways in that Act described and to abandon the railways and portions of railway authorised by the Act of 1897 which were rendered unnecessary by the construction of the said deviation railways :

And whereas the capital authorised by the Act of 1897 and the Act of 1903 has not been issued and none of the powers of those Acts with respect to the purchase of land and the making of the railways have been exercised and it is expedient that the undertaking be abandoned and that the affairs of the Company be wound up and the Company dissolved :

[Ch. xxiv.] *Hastings Harbour District Railway* [5 EDW. 7.]
(*Abandonment*) Act, 1905.

A.D. 1905. — And whereas the objects aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title. 1. This Act may be cited as the Hastings Harbour District Railway (Abandonment) Act 1905.

Abandonment of railways. 2. The Company shall abandon the construction of the railways parade or roadway seawall and other works authorised by the Act of 1897 and the railways and other works authorised by the Act of 1903 (in this Act called "the railways").

Compensation for damage to land by entry &c. for purposes of railways abandoned. 3. The abandonment by the Company under the authority of this Act of the railways shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Company on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out of the line of railway and shall not prejudice or affect the right of the owner or occupier of any land which has been temporarily occupied by the Company to receive compensation for such temporary occupation or for any loss damage or injury which may have been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Railways Clauses Consolidation Act 1845 the Act of 1897 or the Act of 1903.

Compensation to be made in respect of railways abandoned. 4. Where before the passing of this Act any contract has been entered into or notice given by the Company for the purchasing of any land or easement for the purposes of or in relation to any portions of the railways authorised to be abandoned by this Act the Company shall be released from all liability to purchase or to complete the purchase of any such lands but notwithstanding full compensation shall be made by the Company to the owners and occupiers or other persons interested in such lands for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Consolidation Act 1845 as amended by any subsequent Act for determining the amount and application of compensation paid for lands taken under the provisions thereof.

[5 EDW. 7.] *Hastings Harbour District Railway* [Ch. xxiv.]
(*Abandonment*) Act, 1905.

5. Subject to the provisions of this Act and of section 41 of the Act of 1897 and section 19 of the Act of 1903 with respect to compensation to landowners and other persons injured and for the protection of creditors the High Court may and shall at any time after the passing of this Act on the application by or on behalf of the depositors mentioned or referred to in section 40 of the Act of 1897 and section 18 of the Act of 1903 or the survivors or survivor of them or the executors or administrators of such survivor or by or on behalf of any other person entitled to the deposit fund order that the deposit fund or any stocks or funds in which the same may have been invested and the interest or dividends thereon shall be paid or transferred to the depositors or any other person or persons entitled thereto or to any other person or persons whom they or he may appoint in that behalf and upon such order being made the said deposit fund or any stocks or funds in which the same may have been invested and the interest or dividends thereon shall be paid or transferred accordingly.

A.D. 1905.

Providing
for release
of deposit.

6. Forthwith after the passing of this Act the Company shall proceed to wind up their affairs and shall pay satisfy and discharge all their debts liabilities and engagements.

Company to
wind up
their affairs.

7. When all the debts liabilities and engagements of the Company are paid satisfied and discharged and the affairs of the Company are wound up the Company shall be by this Act dissolved and shall thenceforth wholly cease to exist and the Act of 1897 the Hastings Harbour District Railway (Extension of Time) Act 1902 and the Act of 1903 shall be by this Act repealed.

Dissolution
of Company.

8. All costs charges and expenses of and incident to the applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Expenses of
Act.

Printed by EYRE and SPOTTISWOOD,

FOR

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